EU AI Act Article 50: 11-Point Checklist

Watermarking and labelling AI-generated content, for people who build sites, apps and content

Article 50 of the EU AI Act has applied since 2 August 2026. Model providers such as Anthropic and xAI now watermark AI text by default, but visible labels, chatbot notices and your own role are still on you. Work through these 11 points with your team.

01	☐	Inventory every place your product or site generates text, images, audio or video with AI.
02	☐	Identify each model provider and read its marking docs (Claude, Grok, OpenAI and others).
03	☐	Log the **x-watermark** response header (Grok), or the equivalent, per request.
04	☐	Don't opt out of watermarking unless a legal exception is documented.
05	☐	Check sampling parameters: Sonnet 4.6 and Opus 4.6 with non-default temperature, top_p or top_k may drop the mark.
06	☐	Keep C2PA metadata on generated files; don't strip it in image pipelines.
07	☐	Chatbots: tell users they're talking to AI, from the first interaction (Art. 50(1)).
08	☐	Deepfakes and public-interest AI text: add a visible disclosure, unless the text was human-reviewed under editorial responsibility (Art. 50(4)).
09	☐	Generative systems on the market before 2 August 2026: marking by 2 December 2026 (Art. 111(4)).
10	☐	Publish a short AI transparency note on your site.
11	☐	Get legal review of your provider or deployer role. ⚠

Disclaimer: This checklist is for general information only and is not legal advice. It reflects public sources as of 4 November 2026 (EU AI Act Art. 50; European Commission Article 50 FAQ; Claude Help Center; xAI API docs). Provider features change often; check the current documentation. Whether building on a third-party API makes you a provider is a legal question: consult a qualified lawyer. ⚠ marks items that need professional review.

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